

STATE OF NEW YORK

8222--B

2025-2026 Regular Sessions

IN ASSEMBLY

May 5, 2025

Introduced by M. of A. SIMON, FORREST, SHIMSKY, REYES, GLICK, COLTON, SANTABARBARA, DE LOS SANTOS, STECK, BRABENEC, DeSTEFANO, K. BROWN, GALLAGHER -- read once and referred to the Committee on Judiciary -- recommitted to the Committee on Judiciary in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil practice law and rules, in relation to the statute of limitations for civil actions related to certain deed theft actions, reviving such actions otherwise barred by the existing statute of limitations and granting trial preference to such actions; and to amend the judiciary law, in relation to directing the chief administrator of the courts to promulgate rules for the timely adjudication of certain revived actions

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The civil practice law and rules is amended by adding a new
2 section 214-k to read as follows:

3 § 214-k. Certain deed theft actions. 1. Notwithstanding any provision
4 of law which imposes a period of limitation to the contrary, every civil
5 claim or cause of action brought against any party alleging fraud, frau-
6 dulent inducement, or fraudulent misrepresentation in obtaining the
7 title to a residential dwelling, every civil claim or cause of action
8 alleging a violation of section three hundred forty-nine of the general
9 business law or section two hundred sixty-five-a of the real property
10 law that arise from fraud, fraudulent inducement, or fraudulent misrep-
11 resentation in obtaining the title to a residential dwelling, and every
12 civil claim or cause of action for legal malpractice related to such
13 allegations, accruing on or after January first, two thousand, which is
14 barred as of the effective date of this section because the applicable

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11599-07-6

period of limitation has expired, is hereby revived, and action thereon may be commenced not earlier than six months after, and not later than one year and six months after the effective date of this section. In any such claim or action, dismissal of a previous action ordered before the effective date of this section on grounds that such previous action was time barred, or dismissal of such previous action pursuant to rule thirty-two hundred sixteen of this chapter for failure to prosecute, shall not be grounds for dismissal of a revival action pursuant to this section.

2. Claims that are revived pursuant to this section shall be limited to those asserted by: (a) natural persons who resided at the property at issue as their primary residence for at least two consecutive years immediately prior to the deed theft; (b) the estates of natural persons who resided at the property at issue as their primary residence for at least two consecutive years immediately prior to the deed theft; and (c) entities where at least one owner of the entity resided at the property at issue as their primary residence for at least two consecutive years immediately prior to the deed theft.

§ 2. Paragraph 7 of subdivision (a) of rule 3403 of the civil practice law and rules, as amended by chapter 203 of the laws of 2022, is amended to read as follows:

7. any action which has been revived pursuant to section two hundred fourteen-g ~~[of]~~, two hundred fourteen-j, or two hundred fourteen-k of this chapter.

§ 3. The judiciary law is amended by adding a new section 219-f to read as follows:

§ 219-f. Rules reviving certain actions; deed theft. The chief administrator of the courts shall promulgate rules for the timely adjudication of revived actions brought pursuant to section two hundred fourteen-k of the civil practice law and rules.

§ 4. The provisions of this act shall be severable, and if any clause, sentence, paragraph, subdivision or part of this act shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, subdivision or part thereof directly involved in the controversy in which such judgment shall have been rendered.

§ 5. This act shall take effect immediately; provided, however, that section three of this act shall take effect three months after this act shall have become a law.